

Online Complaint Form



COMPLAINT ABOUT A CALIFORNIA JUDGE, COURT COMMISSIONER OR REFEREE

Confidential under California Constitution Article VI, Section 18, and Commission Rule 102

For instructions on filling out and submitting this form, please visit the commission's [Online Complaint Instructions webpage](#).

Date Submitted
7/21/2024 12:59 PM

Entry Number
8,031

* Indicates a required field

Your information

Complainant 1

Your name
Kostiantyn Mars

Your pronouns (e.g., he/him; she/her; they/them)

Your email
constantine.mars@gmail.com

Your telephone number
(408) 518-0088

Your address
PO Box 8081, San Jose, California 95155

Judge and conduct

Judge 1

Name of judge
Beth McGowen

Or Name of court commissioner or referee

Court Level
Superior Court

Court of Appeal District

County
Santa Clara

Type of court case

Family Law

Case name

Dissolution of Family Mars

Case number

22FL003144

Your relationship to the case

Litigant/Family/Friend

Date or dates conduct occurred

2022, 2023, 2024

Please specify what action or behavior of the judge, court commissioner or referee is the basis of your complaint. Provide relevant dates and the names of others present. (Attach additional pages if necessary.)*

Complaint

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,

With all respect, I have to file this highest priority complaint against Presiding Judge Beth McGowen and whole Santa Clara County Superior Court, which so far demonstrated extreme inefficiency and terrifying level of organized crime under label of law during past three years: 2022, 2023, 2024.

IT IS THE WORST SERVICE OF GOVERNMENT EMPLOYEES EVER!

I'M PAYING TAXES AND COURT FEES TO BE HARASSED AND THREATENED BY SOME DISQUALIFIED BRIBED CROOKS, WHO DEMONSTRATIVELY REFUSE TO OBEY THE LAW IN THE COURTROOM AND PERFORM THEIR DUTIES!
THIS IS ABSOLUTELY IMPERMISSIBLE!

Under supervision of Presiding Judge Beth McGowen organized crime under color of law in Santa Clara County Superior Court reached absolutely terrifying, impermissible levels, which clearly could be identified as

UNCONTROLLABLE OUTBURST OF BRIBERY AND ORGANIZED CRIME UNDER COLOR OF LAW IN SANTA CLARA COUNTY SUPERIOR COURT.

Repetitive bribery of THREE DISQUALIFIED CROOKS ("JUDICIAL OFFICERS"): STEPHEN LOWNY, ANDREA FLINT, JAMES TOWERY, their REPETITIVE THREATS AND COERCION TO FORCE ME TO ABANDON MY KIDNAPPED SON MAX MARS,

SEVERE REPETITIVE FRAUD ON COURT AND MASSIVE FALSIFICATION OF COURT RECORDS BY THREE DISQUALIFIED CROOKS AND THEIR CLERKS,

SEVERE REPETITIVE VIOLATION OF CODE OF JUDICIAL ETHICS, AND CALIFORNIA CODE OF CIVIL PROCEDURES,

REPETITIVE REFUSAL TO OBEY LAW IN COURTROOM,

REPETITIVE REFUSAL TO RECUSE WHEN CONFLICT OF INTEREST TURNED TO LEVEL OF PERSONAL FIGHT (IF NOT A "DUEL")

PLAYING FUCKED FREAK SHOW TO MAKE IT LOOK LIKE IT IS IMPOSSIBLE TO DISQUALIFY AND

REMOVE BRIBED JUDGE,

MAKING INTEREST ON ENFORCING COURT ORDERS OBTAINED BY FRAUD ON COURT COMMITTED BY THEMSELVES,

MAKING INTEREST ON ORDERING ABSOLUTELY IRRELEVANT AND HARMFUL SERVICES - INCLUDING PAID PROFESSIONALLY SUPERVISED VISITATIONS AND EMERGENCY SCREENING, ASSIGNING UNNECESSARY "EXPERTS" TO PREPARE QDRO (WHICH IS ALREADY FILED WITH THE COURT),

ORDERING MAXIMUM SPOUSAL SUPPORT, ABSOLUTELY UNSUPPORTED BY ANY FINANCIAL OR LEGAL REASONS,

REMOVING SIGNED EMERGENCY SCREENER RECOMMENDATIONS, SERVED AND EMAILED TO COURT BY EMERGENCY SCREENER,

LYING IN THE COURTROOM AND REPETITIVELY FALSIFYING COURT RECORDS AND ORDERS,

MAKING ORDERS THAT GO AGAINST THE LAW, FACTS AND EVIDENCE, AND ORDERS WHICH ENDANGER LIFE OF MINOR CHILD,

PUTTING CHILD IN HANDS OF VIOLENT ABUSER WHO THREATENED TO KILL CHILD AFTER ABDUCTION ABROAD - WHILE DENYING CHILD ABDUCTION PREVENTION ORDERS, AND IN OPPOSITE ORDERING TO GIVE UP PASSPORT AND ALL DOCUMENTS TO VIOLENT PSYCHOPATH, WHO HAS DOCUMENTED HISTORY OF INTERNATIONAL CHILD KIDNAPPING, AND DIRECTLY THREATENED TO ABDUCT MY CHILD (AFTER KIDNAPPING MY CHILD DOMESTICALLY AND BRIBING THREE DISQUALIFIED CROOKS "JUDGES" TO STEAL PASSPORT OF MY SON),

DEMONSTRATIVE REFUSAL TO COMPLY WITH THE LAW, AND RECUSE THEMSELVES WHEN CONFLICT OF INTEREST ARISES,

ARGUING WITH ME IN THE COURTROOM WHEN I REQUEST THEIR RECUSAL IN COMPLIANCE WITH CALIFORNIA CODE OF CIVIL PROCEDURES AND THE VERY CANONS OF JUDICIAL ETHICS,

SEVERE RETALIATION FOR DISQUALIFYING THEM,

THREATS AND COERCION, ATTEMPTS TO ORDER MY ARREST THROUGH CONTEMPT IN RETALIATION FOR DISQUALIFYING THOSE THREE FUCKED CROOKS,

All this freak show created by disqualified fucked crooks Lowney, Flint and Towery over last years, TOGETHER WITH REFUSAL OF PRESIDING JUDGE BETH MCGOWEN TO OFFICIALLY DISQUALIFY AND NULLIFY ALL ORDERS OF THREE DISQUALIFIED BRIBED CROOKS LOWNEY, FLINT AND TOWERY,

All this completely destroyed credibility of Santa Clara County Superior Court.

I do not see any possibility to continue simple and straightforward divorce process (which should normally take 6 - 12 months) in a nit nest of fucked crooks, who commit severe repetitive fraud on court, facilitate kidnapping of my son by "court orders" obtained by fraud on court, order massive financial fraud against me by committing fraud on court and using falsified bank statements and absolutely irrelevant amounts of money that they "order" to steal from me, refusing to comply with the law in the courtroom, threaten me by arrests for requesting reconsideration of fraud on court which they committed, arguing

and personally threatening me...

I already filed Motion to Change Venue - which was removed by disqualified bribed crook Lowney from court calendar, same as request to bifurcate status of marriage and request for Final Trial - which were removed already FIVE times by disqualified bribed crook Lowney.
Fucked crook Lowney completely blocked case,

While Presiding Judge Beth McGowen refused to act on any Statement of Disqualification served to her during past years - neither on TWO Statements of Disqualification against bribed crook Andrea Flint, nor on Statement of Disqualification against bribed crook Stephen Lowney.

I seriously consider filing Quo Warranto, and honestly do not see any possibility to continue my divorce case in extremely corrupted Santa Clara County Superior Court.

ALL ORDERS OF THREE DISQUALIFIED BRIBED CROOKS MUST BE NULLIFIED RETROACTIVELY BACK TO 09/13/2022.

Refusal to disqualify judges from Presiding Judge, means that those fucked crooks continue "striking" statements of disqualification and stay on the case, continuing committing more and more extremely harmful crimes under color of law, retaliating to me, and making it look like "it is impossible to remove bribed judge", "Presiding Judge did not answer - and will never answer", and making it look that fucked nit nest of Santa Clara County Superior Court is just a place where getting fair judgment is completely impossible due to UNCONTROLLABLE OUTBURST OF ORGANIZED CRIME, SUPPORTED AND ENDORSED BY PRESIDING JUDGE BETH MCGOWEN.

Judicial officers are just government employees, and they must comply with the law. All the freak show that they created while being protected by Beth McGowen is absolutely impermissible, and must be reversed and nullified.

This case is already public, and I don't give a fuck how many government authorities will need be involved to stop uncontrollable outburst of organized crime under color of law in Santa Clara County Superior Court.

It is in the news and in mailboxes of multiple government authorities.

Apologies for using "strong" words... but while Beth McGowen nurturing organized crime in Santa Clara County Superior Court, my son Max Mars is prisoner of schizophrenic mother who is beating him regularly, and promised to kill him after abduction to Ukraine - while CUSTODY CASE WAS NEVER HEARD BY THREE DISQUALIFIED BRIBED CROOKS WHO WASTED ALREADY TWO YEARS MAKING FUCKED FREAK SHOW, REMOVING HEARINGS AND DENYING EVIDENTIARY TRIALS.

My son is threatened and brainwashed into complete fear and obedience of socially dangerous psychopath, who killed defenseless 95 years old senior woman with disabilities, and kidnapped and holds prisoner my minor child without right for a phone call - WHILE MOTHER CONTINUING BEATING MY SON EVEN ON HIS BIRTHDAY - AND EVEN WHILE VIDEO RECORDED, and motivating this insane violence against my child by "COURT ORDERS" OBTAINED BY FRAUD ON COURT WITH SIGNATURES OF THREE DISQUALIFIED BRIBED CROOKS LOWNEY, FLINT AND TOWERY.

While Beth McGowen is nurturing bribery and organized crime in Santa Clara County Superior Court, my son is beaten, held without any contact with me, and could be any moment kidnapped to Ukraine in times of war, where THOUSANDS OF CHILDREN WERE KILLED BY RUSSIAN MISSILES (check more recent news about July 2024 Russian attack on Children's Hospital Okhmatdyt in Kyiv, Ukraine - <https://www.hrw.org/news/2024/07/11/russias-july-8-attack-childrens-hospital-ukraine>).

NURTURING UNCONTROLLABLE OUTBURST OF BRIBERY AND ORGANIZED CRIME IN SANTA CLARA COUNTY SUPERIOR COURT IS ABSOLUTELY IMPERMISSIBLE!

Dear Commission on Judicial Performance and Chief Justice Patricia Guerrero,

I respectfully ask your help to immediately remove Beth McGowen from Superior Court, OFFICIALLY DISQUALIFY AND NULLIFY ALL ORDERS OF THREE DISQUALIFIED BRIBED CROOKS ("JUDICIAL OFFICERS") STEPHEN LOWNEY, ANDREA FLINT, AND JAMES TOWERY - AND BAN THEM FROM ANY JUDICIAL, POLITICAL OR GOVERNMENT JOB INDEFINITELY.

I respectfully attach statements of disqualification that were never addressed by Beth McGowen, and appreciate your prompt attention to this urgent matter.

Thank you

File Upload

Evidence for Complaint 2024-02-07 - Beth McGowen, Disqualify and Nullify all orders.pdf

2024-02-20 Disqualification against Lowney.pdf

2023-11-13 Disqualification against Flint.pdf

2023-11-30 Disqualification against Flint Amended.pdf